

NHRC AND SHRC

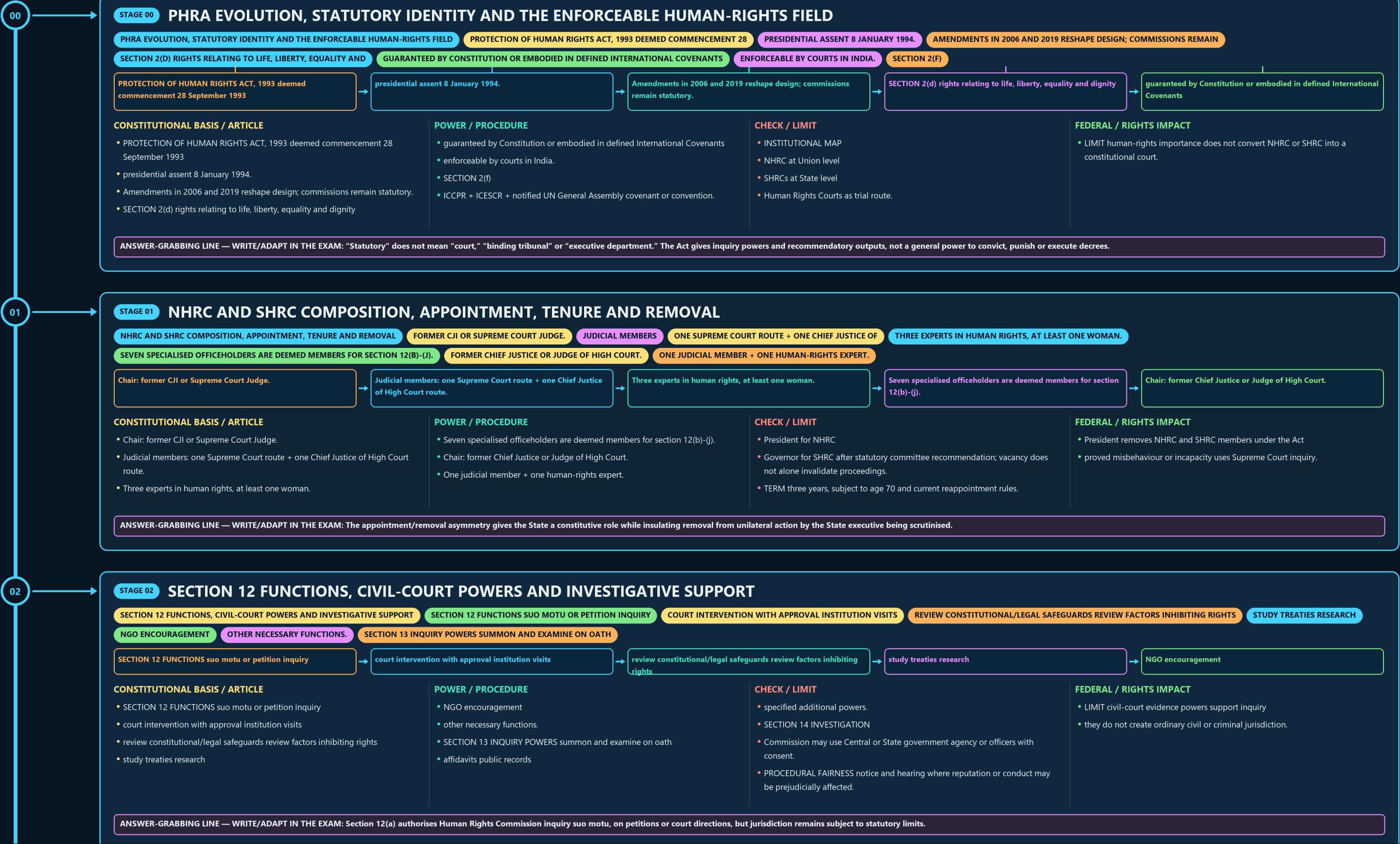
PHRA EVOLUTION, STATUTORY IDENTITY → NHRC AND SHRC COMPOSITION → SECTION 12 FUNCTIONS, CIVIL-COURT → COMPLAINT-TO-RECOMMENDATION PROCEDURE, ONE-YEAR BAR → ARMED-FORCES PROCEDURE AND HUMAN → NHRC-SHRC JURISDICTION, OVERLAP AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02

SECTION 12 FUNCTIONS, CIVIL-COURT POWERS AND INVESTIGATIVE SUPPORT

SECTION 12 FUNCTIONS, CIVIL-COURT POWERS AND INVESTIGATIVE SUPPORT

SECTION 12 FUNCTIONS SUO MOTU OR PETITION INQUIRY

COURT INTERVENTION WITH APPROVAL INSTITUTION VISITS

REVIEW CONSTITUTIONAL/LEGAL SAFEGUARDS REVIEW FACTORS INHIBITING RIGHTS

STUDY TREATIES RESEARCH

NGO ENCOURAGEMENT

OTHER NECESSARY FUNCTIONS

SECTION 13 INQUIRY POWERS SUMMON AND EXAMINE ON OATH

SECTION 12 FUNCTIONS suo motu or petition inquiry

→

court intervention with approval institution visits

→

review constitutional/legal safeguards review factors inhibiting rights

→

study treaties research

→

NGO encouragement

CONSTITUTIONAL BASIS / ARTICLE

• SECTION 12 FUNCTIONS suo motu or petition inquiry

• court intervention with approval institution visits

• review constitutional/legal safeguards review factors inhibiting rights

• study treaties research

POWER / PROCEDURE

• NGO encouragement

• other necessary functions.

• SECTION 13 INQUIRY POWERS summon and examine on oath

• affidavits public records

CHECK / LIMIT

• specified additional powers.

• SECTION 14 INVESTIGATION

• Commission may use Central or State government agency or officers with consent.

• PROCEDURAL FAIRNESS notice and hearing where reputation or conduct may be prejudicially affected.

FEDERAL / RIGHTS IMPACT

• LIMIT civil-court evidence powers support inquiry

• they do not create ordinary civil or criminal jurisdiction.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 12(a) authorises Human Rights Commission inquiry suo motu, on petitions or court directions, but jurisdiction remains subject to statutory limits.

03

STAGE 03

COMPLAINT-TO-RECOMMENDATION PROCEDURE, ONE-YEAR BAR AND LEGAL EFFECT

COMPLAINT-TO-RECOMMENDATION PROCEDURE, ONE-YEAR BAR AND LEGAL EFFECT

ENTRY COMPLAINT OR SUO MOTU MATERIAL

JURISDICTION SCREEN

INQUIRY OR INVESTIGATION.

SECTION 36 NO PARALLEL INQUIRY WHERE ANOTHER NAMED COMMISSION

SECTION 36(2)

NO INQUIRY AFTER ONE YEAR FROM THE ALLEGED VIOLATIVE

SECTION 18 OUTPUTS RECOMMEND COMPENSATION OR DAMAGES RECOMMEND PROSECUTION

CONSTITUTIONAL BASIS / ARTICLE

• ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.

• SECTION 36 no parallel inquiry where another named commission is seized.

• Section 36(2): no inquiry after one year from the alleged violative act.

POWER / PROCEDURE

• SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other action approach Supreme Court or High Court

• recommend immediate interim relief.

• FOLLOW-UP government comments/action report ordinarily within one month

CHECK / LIMIT

• Commission publishes report, recommendation and response.

• LEGAL EFFECT recommendation carries public and institutional weight but is not a self-executing decree.

• TRAP action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

FEDERAL / RIGHTS IMPACT

• SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other action approach Supreme Court or High Court

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The special route reflects operational and security concerns but weakens perceived independence where the alleged violator and reporting chain are institutionally connected.

04

STAGE 04

ARMED-FORCES PROCEDURE AND HUMAN RIGHTS COURTS: TWO SPECIAL ROUTES

ARMED-FORCES PROCEDURE AND HUMAN RIGHTS COURTS

TWO SPECIAL ROUTES

SECTION 19

ARMED FORCES

NHRC MAY ACT ON ITS OWN MOTION OR PETITION

SEEK CENTRAL GOVERNMENT REPORT

EITHER NOT PROCEED OR MAKE RECOMMENDATION

CENTRAL GOVERNMENT REPORTS ACTION WITHIN THREE MONTHS

SECTION 19: ARMED FORCES

NHRC may act on its own motion or petition

→

seek Central Government report

→

either not proceed or make recommendation

CONSTITUTIONAL BASIS / ARTICLE

• SECTION 19: ARMED FORCES

• NHRC may act on its own motion or petition

• seek Central Government report

POWER / PROCEDURE

• either not proceed or make recommendation

• Central Government reports action within three months

• Commission publishes material.

CHECK / LIMIT

• LIMIT ordinary inquiry architecture is replaced by this special report-based route.

• SECTIONS 30-31: HUMAN RIGHTS COURTS

• State Government, with concurrence of Chief Justice of High Court, may specify a Court of Session for speedy trial of human-rights offences.

FEDERAL / RIGHTS IMPACT

• Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

• Human Rights Court tries offences; NHRC or SHRC inquires and recommends.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Human Rights Courts use designated Sessions Courts and Special Public Prosecutors, but the statutory route yields where an applicable Special Court already exists.

05

STAGE 05

NHRC-SHRC JURISDICTION, OVERLAP AND SPECIALISED-COMMISSION COORDINATION

NHRC-SHRC JURISDICTION, OVERLAP AND SPECIALISED-COMMISSION COORDINATION

NHRC NATIONAL STATUTORY MANDATE SUBJECT TO PHRA EXCLUSIONS AND

SHRC INQUIRES INTO MATTERS RELATABLE TO STATE LIST AND

SECTION 29 ADAPTS FUNCTIONS AND OMITTS TREATY STUDY.

NHRC MAY TRANSFER A COMPLAINT TO A COMPETENT SHRC

NCSC, NCST AND NCBC HAVE CONSTITUTIONAL SAFEGUARD MANDATES.

WOMEN, CHILD, MINORITY AND DISABILITY BODIES HAVE SPECIALISED STATUTORY

COORDINATION COMMON INTAKE METADATA

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
NHRC national statutory mandate subject to PHRA exclusions and transfer rules.	NHRC may transfer a complaint to a competent SHRC under statutory conditions.	COORDINATION common intake metadata → reasoned referral → no duplicate inquiry	NHRC may transfer a complaint to a competent SHRC under statutory conditions.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- SECTION 19: ARMED FORCES - NHRC may act on its own motion or petition - seek Central Government report	- either not proceed or make recommendation - Central Government reports action within three months - Commission publishes material.	- LIMIT ordinary inquiry architecture is replaced by this special report-based route. - SECTIONS 30-31: HUMAN RIGHTS COURTS - State Government, with concurrence of Chief Justice of High Court, may specify a Court of Session for speedy trial of human-rights offences.	- Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice. - Human Rights Court tries offences; NHRC or SHRC inquires and recommends.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Human Rights Courts use designated Sessions Courts and Special Public Prosecutors, but the statutory route yields where an applicable Special Court already exists.			

05

STAGE 05 NHRC-SHRC JURISDICTION, OVERLAP AND SPECIALISED-COMMISSION COORDINATION			
NHRC-SHRC JURISDICTION, OVERLAP AND SPECIALISED-COMMISSION COORDINATION	NHRC NATIONAL STATUTORY MANDATE SUBJECT TO PHRA EXCLUSIONS AND	SHRC INQUIRES INTO MATTERS RELATABLE TO STATE LIST AND	SECTION 29 ADAPTS FUNCTIONS AND OMITTS TREATY STUDY.
NHRC MAY TRANSFER A COMPLAINT TO A COMPETENT SHRC	NCSC, NCST AND NCBC HAVE CONSTITUTIONAL SAFEGUARD MANDATES.	WOMEN, CHILD, MINORITY AND DISABILITY BODIES HAVE SPECIALISED STATUTORY	COORDINATION COMMON INTAKE METADATA
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
NHRC national statutory mandate subject to PHRA exclusions and transfer rules.	NHRC may transfer a complaint to a competent SHRC under statutory conditions.	COORDINATION common intake metadata → reasoned referral → no duplicate inquiry	NHRC may transfer a complaint to a competent SHRC under statutory conditions.
SHRC inquires into matters relating to State List and Concurrent List	NCSC, NCST and NCBC have constitutional safeguard mandates.	joint thematic work → preserve specialist voice.	
section 29 adapts functions and omits treaty study.	Women, child, minority and disability bodies have specialised statutory fields.	LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.	
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- NHRC national statutory mandate subject to PHRA exclusions and transfer rules. - SHRC inquires into matters relating to State List and Concurrent List - section 29 adapts functions and omits treaty study.	- NHRC may transfer a complaint to a competent SHRC under statutory conditions. - NCSC, NCST and NCBC have constitutional safeguard mandates. - Women, child, minority and disability bodies have specialised statutory fields.	- COORDINATION common intake metadata → reasoned referral → no duplicate inquiry - joint thematic work → preserve specialist voice. - LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.	NHRC may transfer a complaint to a competent SHRC under statutory conditions.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 4(2) says an appointment is not invalid merely because of a vacancy of a member in the selection committee.			

06

STAGE 06 PARIS PRINCIPLES, GANHRI ACCREDITATION AND CURRENT-STATUS DISCIPLINE			
PARIS PRINCIPLES, GANHRI ACCREDITATION AND CURRENT-STATUS DISCIPLINE	PARIS PRINCIPLES, 1993 BROAD LEGAL MANDATE	OPEN APPOINTMENT ADEQUATE RESOURCES	STABLE TENURE
PHRA MANDATE AND INQUIRY POWERS VERSUS POLICE/DEPUTATION DEPENDENCE, SHORT	GANHRI CONTROL		
PARIS PRINCIPLES, 1993 broad legal mandate			
open appointment adequate resources → stable tenure → independent methods			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- PARIS PRINCIPLES, 1993 broad legal mandate - open appointment adequate resources - stable tenure - independent methods	- DOMESTIC TEST - PHRA mandate and inquiry powers versus police/deputation dependence, short terms, selection opacity and weak follow-up. - GANHRI CONTROL - March 2025 SCA recommended B downgrade.	- India challenged with required Bureau support. - Public membership page continued to list India as A on the 24 August 2026 control. - SAFE LANGUAGE current public A listing + unresolved official scrutiny. - TRAP recommendation under challenge != completed downgrade	A listing != proof of perfect Paris-Principles compliance.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: GANHRI A-status signals institutional compliance with the Paris Principles, but accreditation does not prove perfect independence, pluralism, funding or performance in practice.			

07

STAGE 07 THREE HUMAN-RIGHTS CASE-LAW BOUNDARIES			
THREE HUMAN-RIGHTS CASE-LAW BOUNDARIES	PARAMJIT KAUR V. STATE OF PUNJAB (1999)	SUPREME COURT USED NHRC AS AN EXPERT BODY ASSISTING	THIS CONSTITUTIONAL ASSIGNMENT IS NOT ORDINARY PHRA JURISDICTION.
A COMPLETED VIOLATION DOES NOT BECOME A DAILY CONTINUING	EEVFAM (2016) EXCESSIVE-FORCE ALLEGATIONS REQUIRE LAWFUL INQUIRY UNDER ARTICLE	NHRC IS A VALUABLE ROUTE BUT NOT EXCLUSIVE AND	N.C. DHOONDIAL V. UNION OF INDIA (2003) SECTION 36(2)
Paramjit Kaur v. State of Punjab (1999)			
Supreme Court used NHRC as an expert body assisting Article 32 jurisdiction. → This constitutional assignment is not ordinary PHRA jurisdiction. → N.C. Dhoundial v. Union of India (2003) section 36(2) is a jurisdictional bar			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT

- open appointment adequate resources
- stable tenure
- independent methods

- PHRA mandate and inquiry powers versus police/deputation dependence, short terms, selection opacity and weak follow-up.
- GANHRI CONTROL
- March 2025 SCA recommended B downgrade.

- Public membership page continued to list India as A on the 24 August 2026 control.
- SAFE LANGUAGE current public A listing + unresolved official scrutiny.
- TRAP recommendation under challenge != completed downgrade

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: GANHRI A-status signals institutional compliance with the Paris Principles, but accreditation does not prove perfect independence, pluralism, funding or performance in practice.

07

STAGE 07

THREE HUMAN-RIGHTS CASE-LAW BOUNDARIES

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This constitutional assignment is not ordinary PHRA jurisdiction.

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CONSTITUTIONAL BASIS / ARTICLE

- Paramjit Kaur v. State of Punjab (1999)
- Supreme Court used NHRC as an expert body assisting Article 32 jurisdiction.

POWER / PROCEDURE

- This constitutional assignment is not ordinary PHRA jurisdiction.
- N.C. Dhoundial v. Union of India (2003) section 36(2) is a jurisdictional bar

CHECK / LIMIT

- a completed violation does not become a daily continuing wrong merely through non-reparation.
- EEVFAM (2016) excessive-force allegations require lawful inquiry under Article 32 oversight

FEDERAL / RIGHTS IMPACT

- NHRC is a valuable route but not exclusive and recommendations were not made generally binding.
- Court-assigned expertise may exceed the ordinary route, but an autonomous statutory commission remains bound by statutory limits.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 36(2) ordinarily bars NHRC inquiry after one year, while Court-directed constitutional assistance follows the Supreme Court's own jurisdiction.

08

STAGE 08

ENFORCEMENT LIMITS, REFORM, PYQ ROUTES AND QUALIFIED SYNTHESIS

ENFORCEMENT LIMITS, REFORM, PYQ ROUTES AND QUALIFIED SYNTHESISSTRUCTURAL LIMITS RECOMMENDATORY OUTPUTSONE-YEAR BARARMED-FORCES REPORT ROUTE GOVERNMENT-LINKED INVESTIGATION SUPPORTFEDERAL AND OVERLAP BOUNDARIES.PRACTICAL LIMITS VACANCIES

DELAYED REPORTSUNEVEN SHRC CAPACITY WEAK HUMAN RIGHTS COURT ROUTING

STRUCTURAL LIMITS recommendatory outputs

one-year bar

armed-forces report route government-linked investigation support

federal and overlap boundaries.

PRACTICAL LIMITS vacancies

CONSTITUTIONAL BASIS / ARTICLE

- STRUCTURAL LIMITS recommendatory outputs
- one-year bar
- armed-forces report route government-linked investigation support
- federal and overlap boundaries.
- PRACTICAL LIMITS vacancies

POWER / PROCEDURE

- delayed reports
- uneven SHRC capacity weak Human Rights Court routing
- limited civil-society trust.
- REFORM independent multidisciplinary investigation cadre
- open plural appointments → time-bound reasoned response

CHECK / LIMIT

- grave/concealed-violation limitation reform
- safeguarded armed-forces fact-finding → interoperable referrals.
- PYQ ROUTES
- 2018 umbrella-commission debate
- 2021 limitations and remedies

FEDERAL / RIGHTS IMPACT

- 2023 body-classification support.
- MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Human Rights Commissions possess inquiry, visibility and court-access tools, but recommendatory remedies, jurisdictional limits and executive dependence constrain their practical effectiveness.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTPART A — NHRCPART B — SHRCAPPOINTED BY THE PRESIDENT ON A 6-MEMBER COMMITTEE'S RECOMMENDATIONPM (HEAD) , LS SPEAKERREMOVED BY THE PRESIDENT ; FOR PROVED MISBEHAVIOUR/INCAPACITYPOWERS OF A CIVIL COURT ; HAS ITS OWN

TWO BIG LIMITATIONS

OPTIONAL DOCTRINE / CASE

- PART A — NHRC
- PART B — SHRC
- Appointed by the President on a 6-member committee's recommendation: PM (head) , LS Speaker ,
- Removed by the President ; for proved misbehaviour/incapacity , a Supreme Court inquiry is required

ADVANCED LIMIT

- Powers of a civil court ; has its own investigating staff .
- CAUTION: Two big limitations: (1) cannot inquire into a matter 1 year old ; (2) recommendations are
- CAUTION: Armed-forces limitation: in respect of the armed forces, it can only seek a report from the Centre and
- Jurisdiction: only State List (II) & Concurrent List (III) subjects; not if the NHRC/another

COMPARATIVE NUANCE

- NOT: NHRC/SHRC are constitutional bodies → statutory (1993 Act).
- NOT: NHRC recommendations are binding → advisory only ; NHRC cannot punish or grant relief.
- NOT: NHRC can inquire into any old case → only within 1 year of the violation.
- NOT: SHRC members are removed by the Governor → removed only by the President .

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.